

Opinion of the Court

JUSTICE THOMAS delivered the opinion of the Court.

This case involves a civil suit against the District of Columbia and five of its police officers, brought by 16 individuals who were arrested for holding a raucous, late-night party in a house they did not have permission to enter. The United States Court of Appeals for the District of Columbia Circuit held that there was no probable cause to arrest the partygoers, and that the officers were not entitled to qualified immunity. We reverse on both grounds.

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Around 1 a.m. on March 16, 2008, the District’s Metropolitan Police Department received a complaint about loud music and illegal activities at a house in Northeast D. C. The caller, a former neighborhood commissioner, told police that the house had been vacant for several months. When officers arrived at the scene, several neighbors confirmed that the house should have been empty. The officers approached the house and, consistent with the complaint, heard loud music playing inside.

After the officers knocked on the front door, they saw a man look out the window and then run upstairs. One of the partygoers opened the door, and the officers entered. They immediately observed that the inside of the house “‘was in disarray’” and looked like “‘a vacant property.’” 841

Landry of Louisiana, *Brian E. Frosh* of Maryland, *Bill Schuette* of Michigan, *Jim Hood* of Mississippi, *Doug Peterson* of Nebraska, *Adam Paul Laxalt* of Nevada, *Gordon J. MacDonald* of New Hampshire, *Christopher S. Porrino* of New Jersey, *Michael DeWine* of Ohio, *Mike Hunter* of Oklahoma, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Peter F. Kilmartin* of Rhode Island, *Alan Wilson* of South Carolina, *Herbert H. Slatery III* of Tennessee, *Ken Paxton* of Texas, *Patrick Morrissey* of West Virginia, and *Brad D. Schimel* of Wisconsin; and for the National Association of Counties et al. by *John J. Korzen* and *Lisa Soronen*.

Andrew J. Pincus, *Eugene R. Fidell*, *Cecillia D. Wang*, *Ezekiel R. Edwards*, *Arthur B. Spitzer*, and *Scott Michelman* filed a brief for the American Civil Liberties Union et al. as *amici curiae* urging affirmance.